

25STCV10018 25STCV10018

County: los-angeles

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Case Number: 25STCV10018 Hearing Date: July 20, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

NATASHA KORMAN

vs.

FARMERS GROUP PROPERTY AND CASUALTY

INSURANCE COMPANY, et al.

Case No.: 25STCV10018

Hearing Date: July 20, 2026

Moving

Defendant's motion for terminating sanctions is DENIED, WITHOUT PREJUDICE. Plaintiff is sanctioned, jointly and severally with counsel, the full amount requested of \$23,580.00.

On

4/2/2025, Plaintiff filed suit against Farmers Group Property, Casualty Insurance Company, and Adriana Vargas, alleging: (1) discrimination; (2) failure to accommodate; (3) failure to engage in interactive process; (4) failure to prevent discrimination; (5) retaliation; (6) harassment; and (7) wrongful termination.

On

6/15/2026, Defendants Farmers Group Property and Farmers Insurance Exchange (collectively, Moving Defendants) moved for terminating sanctions. They seek monetary sanctions in connection with the motion.

Discussion

Moving

Defendants seek terminating sanctions “on the grounds that Plaintiff has engaged in a prolonged pattern of misuse of the discovery process, including but not limited to failing to provide complete and timely written discovery responses, failing to supplement discovery as promised, evading deposition scheduling for nearly a year, and willfully disobeying this Court’s May 28, 2026 Order compelling her deposition on June 2, 2026.” (Motion, 2: 11-15.)

In

opposition, Plaintiff argues that the record does not support imposing this ultimate sanction because:

It was caused

by two independently verifiable circumstances: (1) Plaintiffs counsel was out of the country handling urgent family estate matters following the death of both of his parents, and was physically unable to attend; and (2) Plaintiff herself was medically incapacitated - she had suffered a severe ankle fall on May 19, 20 2026, was placed on bed rest and heavy pain medication on May 22, 2026, and was unable to walk, stand, drive, or travel. (Denis Decl., ¶¶ 3-8; Korman Decl. ¶¶ 3-10.)

(Opp., 2: 13-22.)

However,

this retelling is not consistent with the Court’s own record of events and is without foundation. As to the latter point, the appearing attorney did not even file a declaration setting forth the events. As to the former point, Defendant has been trying to depose Plaintiff for nearly a year, as its deadline to file an MSJ was 6/17/2026. On 5/28/2026, the Court granted D’s ex parte application ordering Plaintiff to appear at her agreed upon deposition date of 6/2/26 at 9 a.m. The only objection Plaintiff, appearing through counsel (Lawrence Adamsky), had was a request to appear at Defendant’s law office in Los Angeles, as opposed to the law firm’s

office in Irvine. Plaintiff indicated she had parental care obligations which, after discussion of the hours, did not appear to be a conflict.

There was absolutely no discussion about Plaintiff being injured or having a medical condition, nor any mention of counsel of record being out of the country or otherwise unavailable.

In addition, neither of these is mentioned in Plaintiff's opposition to the ex parte filed 5/27/2026.

Plaintiff

did not appear for her 6/2/26 deposition, the date she agreed to on 5/28/2026 and thus was ordered to appear. When the Court denied the parties' stipulation to continue trial on

6/10/26, Plaintiff's counsel said Plaintiff did not sit for the deposition because he did not have time to prepare Plaintiff. In Defendant's ex parte request set on 6/12/26, Defendant indicated Plaintiff said she had a medical procedure (NFI) and was having physical limitations preventing her from sitting. Moreover, Plaintiff's counsel told Defendant's counsel that he had a death in the family and would be out of the country until 6/18/26. At the hearing on 6/12/26 that Plaintiff sent another appearance attorney, Defendant said Plaintiff's attorney said Plaintiff did not sit for the deposition because she has to have a surgery at the end of June and will be wheelchair bound for a month thereafter. No explanation as to what kind of surgery or why that affected her ability to sit for the 6/2/26 depo she previously agreed to appear for.

Crucially,

none of these excuses were brought up during the ex parte on 5/28/26. As such, Plaintiff's counsel's characterization of events for why the deposition did not proceed as agreed to is willfully misrepresentative of the facts.

If

this were the extent of Plaintiff's argument against terminating sanctions, the Court would likely grant the motion. However, Plaintiff's opposition further explained:

Critically,

the June 2, 2026 deposition date was never agreed to by Plaintiff or her counsel. It was imposed by the Court via an ex parte order obtained on May 28, 2026 - while Plaintiffs counsel was on an airplane - with only one day's notice. No one from Plaintiffs side confirmed

that date or agreed to it, and no one contacted Plaintiff to confirm her availability for that date until after the hearing. The attorney who appeared at the hearing was not fully informed of their circumstances and did not have the authority or information to agree to a specific date on Plaintiffs behalf. (Denis Decl., ¶¶ 4-6.) Moreover, after learning of the order, speaking with Plaintiff, counsel immediately notified Defendants the very next day - May 29, 2026, four days before the deposition- explaining the situation and proposing a stipulation to continue the trial and reschedule the deposition. (Denis Decl., ¶ 7; Exhibit B.) Defendants' own counsel, Connie Michaels of Littler Mendelson, responded on June 1, 2026 and agreed to prepare a stipulation, agreed that a new deposition date should be set, and agreed to move the trial date. At that point, counsel believed the matter had been resolved cooperatively. (Denis Decl. ¶ 9; Exhibit C.) On June 4, 2026, both parties executed a Stipulation to Continue the Trial and Related Dates, in which Plaintiff agreed to appear for deposition by July 31, 2026. (Denis Decl., ¶ 10; Exhibit D.)

Plaintiff has now offered Defendants specific deposition dates of July 22 and July 24, 2026, and fully expects the deposition to be scheduled before the hearing on this motion. (Denis Decl. ¶ 14.) This is not the conduct of a party engaged in willful obstruction. Additionally, Defendants incurred no wasted deposition costs - no court reporter was retained, no deposition facility was reserved, and no deposition actually took place on June 2.

(Opp.,
3: 12-16.)

Given that two concrete deposition dates have been provided, the Court finds the drastic remedy of terminating sanctions is inappropriate. However, should Plaintiff fail to appear for deposition by the stipulated date of July 31, Moving Defendants may renew their motion. Still, given Plaintiff's counsel egregious and willful misconduct, the Court finds Defendant's request for monetary sanctions should be granted in full.

Based on the foregoing, Moving Defendant's motion for terminating sanctions is denied, without prejudice. Plaintiff is sanctioned, jointly and severally with counsel, the full amount requested of \$23,580.00.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.